

(3) The Minister shall consider any objection made by or on behalf of any person, being in the case of a draft Order a person affected, and in the case of a draft Order in Council a person whose property will be injuriously affected by reason of the acquisition of the land or the construction of the proposed works, if the objection is sent to the Minister within the required time, and may, if thought fit, amend the draft, and shall then cause the amended draft to be dealt with in like manner as an original draft.

(4) Where the Minister does not amend or withdraw a draft to which any objection has been made, then (unless the objection either is withdrawn or appears to him to be frivolous) he shall before making the Order or submitting the draft Order in Council to Parliament direct an inquiry to be held in the manner hereinafter provided, and may, after considering the report of the person who held the inquiry, make the Order or submit the draft Order in Council to Parliament either without modification or subject to such modification as he may think fit, or may refuse to make the Order or submit the draft Order in Council to Parliament.

2.—(1) The Minister may appoint a competent and impartial person to hold an inquiry with regard to any draft and to report to him thereon.

(2) The inquiry shall be held in public, and any person who being entitled to do so has duly made an objection, may appear at the inquiry either in person or by counsel, solicitor, or agent.

(3) The witnesses on the inquiry may, if the person holding it thinks fit, be examined on oath.

(4) Subject as aforesaid, the inquiry and all proceedings preliminary and incidental thereto shall be conducted in accordance with rules made by the Minister.

(5) The fee to be paid to the person holding the inquiry shall be such as the Minister may direct.

CHAPTER 51.

An Act to provide for checking the Weight or Measurement of Materials produced, handled, or gotten by Workmen paid by weight or measure in certain Industries. [15th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The workmen engaged in any industry to which this Act applies and paid according to the weight of material produced, handled, or gotten by them shall, notwithstanding any agreement to the contrary, have a right to check the weighing of the material or to test the accuracy of the estimated weight of the material in manner provided by this Act or by regulations made thereunder.

Right of
workmen to
check weights
in certain
industries.

(2) The industries to which this Act applies are—

- (a) The production or manufacture of iron or steel, including any process of founding, converting, casting, rolling, or otherwise finishing iron or steel ;
- (b) The loading or unloading of goods, whether as cargo or stores, into and from vessels ;
- (c) The getting of chalk or limestone from quarries ;
- (d) The manufacture of cement and lime ;
- (e) Any other industry to which the provisions of this Act may be extended by regulations made by the Secretary of State.

Manner in
which weights
may be
checked or
tested.

2.—(1) The manner in which the workmen engaged in any industry to which this Act applies may exercise their powers of checking the weights or testing the estimated weights shall, as respects the industries mentioned in the First Schedule to this Act, be such as is provided by the regulations applicable to those industries respectively set forth in that schedule, and as respects any industry to which the provisions of this Act may be extended by regulations of the Secretary of State, be such as may be provided by those regulations :

Provided that the regulations set forth in the First Schedule to this Act may be varied by regulations made by the Secretary of State.

(2) Where under the regulations contained in the First Schedule to this Act, or made by the Secretary of State, the workmen are authorised to appoint a checkweigher, the checkweigher shall be entitled to station himself at any place appointed for the weighing of material in order that he may on behalf of the workmen by whom he is appointed take a correct account of the weight of the material, and the employer shall afford to him all proper facilities for enabling him to fulfil his duties, including facilities for examining and testing all weighing machines and checking the taring of wagons in which the material is weighed.

(3) Where under the regulations contained in the First Schedule to this Act, or made by the Secretary of State, the workmen are entitled to appoint a checkweigher or other representative, the appointment shall be made and revoked and evidence of the appointment furnished to the employer in such manner as the Secretary of State may prescribe, and the provisions of the Coal Mines Regulation Acts, 1887 to 1908, relating to the powers, duties, removal, and remuneration of checkweighers, and the relations between employers and checkweighers, as set forth and adapted in the Second Schedule to this Act, shall apply to the checkweighers and other representatives so appointed.

Offences.

3.—(1) If any employer fails to comply with any of the requirements of this Act or the regulations made thereunder, he shall be guilty of an offence against this Act.

(2) Any person guilty of an offence against this Act for which no other penalty is provided shall on summary conviction be liable to a fine not exceeding five pounds, and to a fine not exceeding forty shillings for each day on which the offence is continued after conviction thereof.

(3) If an employer is charged with an offence against this Act, he shall be entitled, on information duly laid by him, to have any other person whom he charges as the actual offender brought before the court at the time appointed for the hearing of the charge, and if, after the commission of the offence has been proved, the employer proves to the satisfaction of the court that he has used due diligence to comply with the provisions of this Act, and of the regulations made thereunder, and that that other person has committed the offence in question without his knowledge, consent, or connivance, that other person shall be summarily convicted of the offence, and the employer shall be exempt from any fine, and the person so convicted shall in the discretion of the court be also liable to pay any costs incidental to the proceedings.

(4) If any person required to give any certificate or furnish any information or keep any books under this Act or the regulations made thereunder knowingly makes any false statement in any such certificate or furnishes any false information or falsifies any such book, he shall be guilty of a misdemeanour and liable to imprisonment, with or without hard labour, for a term not exceeding two years, or to a fine, or to both such imprisonment and fine.

(5) If any checkweigher or representative of workmen appointed under this Act, or the regulations made thereunder, divulges any trade secret or other information with regard to the employer's business, he shall be liable on summary conviction to imprisonment, with or without hard labour, for a term not exceeding six months or to a fine not exceeding twenty pounds, unless he proves that the trade secret did not come to his knowledge or the information was not acquired by him in the course of the exercise of his powers under this Act.

4.—(1) Where at any works the material on the weight of which wages are based is weighed at intervals and not continuously the employer shall give to the checkweigher (if any) reasonable notice of the time and place at which the weighing will take place.

Intermittent
weighing
and check-
weighing.

(2) Where a checkweigher or other representative appointed under this Act, or the regulations made thereunder, attends at the place where the industry is carried on for the purpose of his duties at irregular intervals, he shall give the employer at least two days' notice of his intention to attend.

5.—(1) Sections eighty, eighty-one, eighty-four, and eighty-six of the Factory and Workshop Act, 1901, relating to regulations under that Act, as set out and adapted in the Third

Provisions as
to regulations.
1 Edw. 7. c. 22.

Schedule to this Act, shall apply to the regulations under this Act.

(2) Printed copies of all regulations contained in or made under this Act for the time being in force with respect to the industry carried on by any employer shall be kept posted up in legible characters and in conspicuous places on the employer's premises, where they may be conveniently read by the workmen.

(3) A printed copy of all such regulations shall be given by the employer to any workman affected thereby on his application.

(4) If any employer fails to comply with any provision of this section as to posting up or giving copies, or if any person pulls down, injures, or defaces any regulations posted up in pursuance of this section, he shall be guilty of an offence against this Act.

Provisions as
to arbitrations.

6. Any matter required to be submitted to arbitration under this Act, or the regulations made thereunder, shall, in accordance with regulations as to procedure and costs made by the Secretary of State, be referred to the decision of a single arbitrator appointed, in default of agreement, by the judge of county courts for the district, or in Scotland by the sheriff of the county, in which the employer's premises are situate.

Interpretation.

7.—(1) Where the workmen engaged in an industry to which this Act applies are paid according to the measure of material produced, handled, or gotten by them, the provisions of this Act shall apply in like manner as if the term "weighing" included measuring, and the terms relating to weighing shall be construed accordingly.

(2) For the purposes of this Act, the workmen engaged in removing the topsoil from chalk or limestone quarries preparatory to the getting of chalk or limestone shall be deemed to be workmen engaged in getting chalk or limestone.

(3) Where under the regulations contained in the First Schedule to this Act the workmen are entitled to appoint a checkweigher they may appoint one or more checkweighers.

(4) Where under the regulations contained in the First Schedule to this Act any matter may be determined by agreement between the employer and the workmen of any class, the agreement may be made between the employer and a majority of the workmen of that class, and when so made shall, whilst in force, be binding on all the workmen of that class, notwithstanding that any of the workmen may have ceased to be, and others may have become, workmen of that class.

(5) In this Act the expression "prescribed" means prescribed by the Secretary of State.

(6) In Scotland the expression "court of summary jurisdiction" means the sheriff.

8. This Act may be cited as the Checkweighing in Various Industries Act, 1919, and shall come into operation on the first day of September nineteen hundred and nineteen.

Short title and
commence-
ment.

SCHEDULES.

Sections 2
and 7.

FIRST SCHEDULE.

REGULATIONS AS TO CHECKING WEIGHTS AND TESTING ESTIMATED WEIGHTS APPLICABLE TO :—

1.—*The Production or Manufacture of Iron or Steel.*

1. Where the iron or steel produced or manufactured is weighed by the employer on the employer's premises, the workmen shall be entitled to appoint a checkweigher.

2. Where the iron or steel produced or manufactured is not so weighed, then—

- (a) if the weight is calculated according to the weight of the materials used for the production or manufacture of the iron or steel and those materials are weighed on the employer's premises, the workmen shall be entitled to appoint a checkweigher to check the weighing ;
- (b) if the weight is calculated in accordance with the capacity of the moulds in which the iron or steel is cast, the employer shall, on being required in the prescribed manner so to do by the workmen, or a majority of them, cause the capacity of the moulds to be periodically tested at such intervals (not being less than fourteen days) and in such manner as, in default of agreement between the employer and the workmen, may be settled by arbitration, and in such case the workmen may appoint a checkweigher to attend at the periodical testing ;
- (c) if the weight is not so calculated, or if it is so calculated, but such periodical testing of the capacity of moulds is not reasonably practicable or would unreasonably interfere with the manner in which the process of manufacture is conducted, the weight shall be checked in such manner as, in default of agreement between the employer and the workmen, may be settled by arbitration, and, if any dispute arises between the employer and the workmen as to whether such periodical testing of the capacity of moulds as aforesaid is not reasonably practicable or would unreasonably interfere with the manner in which the process of manufacture is conducted, the dispute shall be referred to arbitration.

3. Where in pursuance of the foregoing regulations the weight of ingots is periodically tested, whether by testing the capacity of moulds or otherwise, the wages to be paid to the workmen shall be based on the weight ascertained by the test applied for the purpose until the weight is again tested.

4.—(1) Where the workmen engaged in the manufacture of tin plates from steel bars of a standard weight are paid according to the number of boxes of tin plates of a standard weight and a standard superficial area, the checkweigher appointed for the purpose of checking the weighing of the boxes of tin plates, may, if at any time he has reason to believe that the steel bars being used are of less than the standard weight, require the weight of the steel bars to be tested, and may himself attend at the testing.

(2) The manner in which the weight of steel bars is to be so tested in any works shall be that for the time being in force in the works, being such as may have been agreed upon between the employer and the workmen or, in default of agreement, may have been settled by arbitration.

II.—The Loading or unloading of Goods into or from Vessels.

1. The employer shall, as soon as may be after the information is available, furnish to the workmen or their representative or post up in some place convenient to the workmen a certificate in the prescribed form of the total weight of the goods loaded into or unloaded from the vessel.

2. If the accuracy of the certificate is questioned, the workmen or a majority of the workmen may appoint a representative to inquire into its accuracy, and the employer shall furnish to the representative such information and explanation as he may reasonably require for the purposes of the inquiry, and shall allow him access to all books and documents containing particulars on which the certificate is based.

3. Where workmen are employed by a stevedore, the information to be furnished by the stevedore to the representative of the workmen shall include a statement, signed by the person by whom the stevedore is employed, of the quantities on which the stevedore was paid, which statement such person as aforesaid shall furnish on being required so to do by the stevedore.

4. Where the goods loaded or unloaded are actually weighed by the employer at or near the place where the vessel is loaded or unloaded, the workmen entitled under this section to appoint a representative may instead thereof appoint a checkweigher, and in such case the foregoing regulations shall not apply.

III.—The getting of Chalk and Limestone from Quarries.

1. Where the chalk or limestone gotten is weighed on the premises of the employer, the workmen may appoint a checkweigher. If the right of appointing a checkweigher is not exercised, the workmen in charge of the wagons at the time that they are weighed may themselves check the weighing, and the workmen may appoint a representative to check the taring of wagons, and the employer shall afford to such workmen and representative the same facilities for checking the weighing and taring as he is required under this Act to afford to a checkweigher.

2. Where the chalk or limestone is not weighed, but its weight is estimated from the capacity of the wagons into which it is loaded—

(a) all the wagons shall be deemed to be of the same capacity unless the employer divides the wagons into classes, and, if so divided into classes, all wagons of each particular class shall be deemed

- to be of the same capacity, and the capacity of all the wagons, or, if the wagons are divided into classes, the capacity of all the wagons of each class, shall be published either by being marked on the wagons or by a statement posted up in some conspicuous place on the employer's premises ; and
- (b) the workmen shall be entitled to have the capacity of the wagons tested by having such one wagon as they may select or, if the wagons are divided into classes, such one wagon of each class as they may select, weighed full and empty, and may appoint a representative to check the weighing, and the employer shall afford the representative all proper facilities for the purpose ;
 - (c) where the capacity of wagons has been so tested as aforesaid, the workmen shall not be entitled to have the capacity of wagons again tested unless a new class of wagon is introduced ;
 - (d) if at any time any dispute arises between the employer and any workman as to whether a wagon has been filled or not to its capacity, the workman shall have the right to have the wagon load weighed.

3. Where the limestone is not weighed nor its weight calculated on the employer's premises, but the limestone is weighed by the railway company or other person to whom it is consigned and accounts of the weight so ascertained are furnished to the employer, the employer shall, on being required so to do, allow a representative appointed by the workmen to inspect any such accounts specified in the requisition and received by the employer not more than fourteen days before the requisition is made.

IV.—The Manufacture of Cement and Lime.

1. Where the workmen are paid according to the weight of the clinker or lime produced or handled by them and the clinker or lime is weighed on the employer's premises, the workmen may appoint a checkweigher. If the right of appointing a checkweigher is not exercised, the workmen in charge of the wagons at the time that they are weighed may themselves check the weighing and require the records of the weighing to be produced to them, and the workmen may appoint a representative to check the taring of wagons, and the employer shall afford to such workmen and representative the same facilities for checking the weighing and taring as he is required under this Act to afford to a checkweigher.

2. The tares of wagons shall either be marked on the wagons or posted in some conspicuous place on the employer's premises.

3.—(1) Where the wages paid to workmen engaged in the manufacture of cement are adjusted from time to time on taking stock of the amount of cement manufactured at the works, the employer shall take stock at intervals of not less than six months, and when stock is so taken shall forthwith inform the workmen of the estimated amount of cement in store. If a majority of the workmen dispute the estimate and it is impracticable to ascertain by weighing or measuring the exact amount of the cement in store, the question in dispute shall be referred to arbitration.

(2) The employer shall also in any such case keep books in which shall be entered—

- (a) the amount of cement sold and used in the works ;
- (b) the amount of wages paid to the packers, if paid according to weight ;
- (c) the amount of wages paid to the workmen ;
- (d) the amount of cement ascertained or estimated to be in store when stock is taken ;
- (e) where substances are added to clinker when it goes into the mill and deductions are made in respect thereof, the amount of such substances bought, used, and in store on any stock-taking ;
- (f) if any works where the produce of kilns worked by men whose wages are not subject to adjustment is mixed with the produce of kilns worked by men whose wages are subject to adjustment, the weight of material produced in the first-mentioned kilns ;

and, in making deductions for the purposes of adjustment, no greater deductions shall be allowed than are justified by the entries in those books.

(3) Whenever stock is taken for the purpose of the adjustment of the wages of any workmen, those workmen shall have a right to appoint a representative with a view to ascertaining whether any addition to or deduction from the wages should be made, and the employer shall furnish to the representative such information and explanation as he may reasonably require for the purpose, and shall allow him access to the books so kept, and the accounts, tallies, and other documents from which such books have been made out.

4. Where workmen engaged in the manufacture of lime are paid according to the weight of the lime produced, and the lime is not weighed nor its weight calculated on the employer's premises, but the lime is weighed by the railway company or other person to whom it is consigned and accounts of the weight so ascertained are furnished to the employer, the employer shall, on being required so to do, allow a representative appointed by the workmen to inspect any such accounts specified in the requisition and received by the employer not more than fourteen days before the requisition is made.

Section 2.

SECOND SCHEDULE.

APPLIED PROVISIONS OF THE COAL MINES REGULATION ACTS, 1887 TO 1908.

(1) *Coal Mines Regulation Act, 1887.*

(50 & 51 Vict. c. 58.)

13.—(3) A checkweigher or other representative of the workmen shall not be authorised in any way to impede or interrupt the carrying on

of the industry in which the workmen are engaged, or to interfere with the weighing, or with any of the workmen, or with the management of the industry ; but shall be authorised only to exercise such powers as are by this Act or by the regulations made thereunder conferred upon him, and the absence of a checkweigher shall not be a reason for interrupting, or delaying the weighing, but the same shall be done by the person appointed in that behalf by the employer, unless the absent checkweigher had reasonable ground to suppose that the weighing would not be proceeded with : Provided always that nothing in this section shall prevent a checkweigher or other representative of the workmen giving to any workman an account of the material produced, handled, or gotten by him, or information with respect to the weighing, or the weighing machine, or the taring of the wagons or other vehicles, or with respect to any other matter within the scope of his duties as checkweigher or other representative as aforesaid, so always, nevertheless, that the carrying on of the industry be not interrupted or impeded.

(4) If the employer desires the removal of a checkweigher or other representative of the workmen or, in the case of the appointment of a checkweigher or other representative for a temporary purpose, desires that the person so appointed should not be re-appointed as checkweigher or other representative on the ground that he has impeded or interrupted the carrying on of the industry or interfered with the weighing, or with any of the workmen, or with the management of the works, or has at the works to the detriment of the employer done anything beyond exercising such powers as aforesaid, he may complain to a court of summary jurisdiction, who, if of opinion that the employer shows a sufficient *prima facie* case, shall call on the checkweigher or other representative to show cause why such an order as is herein-after mentioned should not be made.

(5) On the hearing of the case the court shall hear the parties, and, if they think that at the hearing sufficient ground is shown by the employer to justify the making of an order, shall make a summary order for the removal of the checkweigher or other representative or prohibiting him from being again appointed as checkweigher or other representative as the case may require, and he shall thereupon be removed or disqualified from again acting as checkweigher or other representative of the workmen, but in the case of an order for removal without prejudice to the appointment of another checkweigher or representative in his place.

(6) The court may in every case make such order as to the costs of the proceedings as the court may think just.

* * * * *

(8) If the person appointed by the employer to weigh any material impedes or interrupts the checkweigher in the proper discharge of his duties, or improperly interferes with or alters the weighing machine or the tare in order to prevent a correct account being taken of the weighing and taring, he shall be guilty of an offence against this Act.

14.--(1) If a checkweigher or other representative of the workmen has been duly appointed by any class of workmen, and has acted as such, he may recover from any workman of that class his proportion of the checkweigher's or representative's wages or recompense, notwithstanding that any of the persons by whom the checkweigher or representative was appointed may have ceased to be and others may have become members of that class since the checkweigher's or

representative's appointment, any rule of law or equity to the contrary notwithstanding.

(2) It shall be lawful for the employer, where the majority of any such class of workmen so agree, to retain the agreed contribution of any member of the class for the checkweigher or other representative, notwithstanding the provisions of the Acts relating to truck, and to pay and account for the same to the checkweigher or other representative.

(2) *The Coal Mines (Check Weigher) Act, 1894.*

(57 & 58 Vict. c. 52.)

1. If an employer, or any person employed by or acting under the instructions of any such employer, interferes with the appointment of a checkweigher or other representative of the workmen, or refuses to afford proper facilities for the holding of any meeting for the purpose of making such appointment, in any case in which the persons entitled to make the appointment do not possess or are unable to obtain a suitable meeting place, or attempts, whether by threats, bribes, promises, notice of dismissal, or otherwise howsoever, to exercise improper influence in respect of such appointment, or to induce the persons entitled to appoint a checkweigher or other representative, or any of them, not to re-appoint a checkweigher or other representative, or to vote for or against any particular person or class of persons in the appointment of a checkweigher or other representative, the employer shall be guilty of an offence against this Act.

(3) *The Coal Mines (Weighing of Minerals) Act, 1905.*

(5 Edw. 7. c. 9.)

1.—(1) The power conferred by this Act on workmen to appoint a checkweigher or other representative of the workmen shall include power to appoint a deputy to act in his absence for reasonable cause, and the expressions "checkweigher" and "representative" when used in this Act shall include any such deputy during such absence as aforesaid.

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(4) The facilities to be afforded to a checkweigher under this Act shall include provision for a checkweigher of a sufficient number of weights to test the weighing machine.

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(6) The wages or recompense which a checkweigher or other representative may recover under this Act shall include expenses properly incurred by him in carrying out his work under this Act.

Section 5.

THIRD SCHEDULE.

APPLIED PROVISIONS OF THE FACTORY AND WORKSHOP ACT,
1901, WITH RESPECT TO REGULATIONS.

80.—(1) Before the Secretary of State makes any regulations under this Act, he shall publish, in such manner as he may think best adapted for informing persons affected, notice of the proposal to make the regulations, and of the place where copies of the draft regulations may

be obtained, and of the time (which shall be not less than twenty-one days) within which any objection made with respect to the draft regulations by or on behalf of persons affected must be sent to the Secretary of State.

(2) Every objection must be in writing and state—

- (a) the draft regulations or portions of draft regulations objected to ;
- (b) the specific grounds of objection ; and
- (c) the omissions, additions, or modifications asked for.

(3) The Secretary of State shall consider any objection made by or on behalf of any persons appearing to him to be affected which is sent to him within the required time, and he may, if he thinks fit, amend the draft regulations, and shall then cause the amended draft to be dealt with in like manner as an original draft.

(4) Where the Secretary of State does not amend or withdraw any draft regulations to which any objection has been made, then (unless the objection either is withdrawn or appears to him to be frivolous) he shall, before making the regulations, direct an inquiry to be held in the manner herein-after provided.

81.—(1) The Secretary of State may appoint a competent person to hold an inquiry with regard to any draft regulations, and to report to him thereon.

(2) The inquiry shall be held in public, and any objector and any other person who, in the opinion of the person holding the inquiry, is affected by the draft regulations, may appear at the inquiry either in person or by counsel, solicitor, or agent.

(3) The witnesses on the inquiry may, if the person holding it thinks fit, be examined on oath.

(4) Subject as aforesaid, the inquiry and all proceedings preliminary and incidental thereto shall be conducted in accordance with rules made by the Secretary of State.

(5) The fee to be paid to the person holding the inquiry shall be such as the Secretary of State may direct.

* * * * *

84. Regulations made under the foregoing provisions of this Act shall be laid as soon as possible before both Houses of Parliament, and, if either House within the next forty days after the regulations have been laid before that House resolve that all or any of the regulations ought to be annulled, the regulations shall, after the date of the resolution, be of no effect, without prejudice to the validity of anything done in the meantime thereunder, or to the making of any new regulations. If one or more of a set of regulations are annulled, the Secretary of State may, if he thinks fit, withdraw the whole set.

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86.—(1) Notice of any regulations having been made under the foregoing provisions of this Act, and of the place where copies of them can be purchased, shall be published in the London, Edinburgh, and Dublin Gazettes.

* * * * *

(6) Regulations for the time being in force under this Act shall be judicially noticed.